

Topics

- Pre-midterm examination (5 points)
- Line Group & What's happening in Thai politics

What's
happening
in Thai
politics
during past
week
recapture



What's
happening
in Thai
politics
during past
week
recapture



What's happening in Thai politics during past week recapture

- The Constitutional Court voted 6:1, ruling that three referenda are required for the drafting of a new constitution.



The graphic consists of three horizontal bars. The top and bottom bars are red. The middle bar is dark blue and contains the text 'THAILAND' and 'POLITICAL SYSTEM' in white, serif, all-caps font. The text is centered within the blue bar.

THAILAND

POLITICAL SYSTEM



รัฐธรรมนูญแห่งราชอาณาจักรไทย
พุทธศักราช ๒๕๖๐



สำนักงานเลขาธิการวุฒิสภา
ปฏิบัติหน้าที่สำนักงานเลขาธิการสภานิติบัญญัติแห่งชาติ

Thailand's political system is a constitutional monarchy, operating under “a democratic regime with the King as Head of State.”

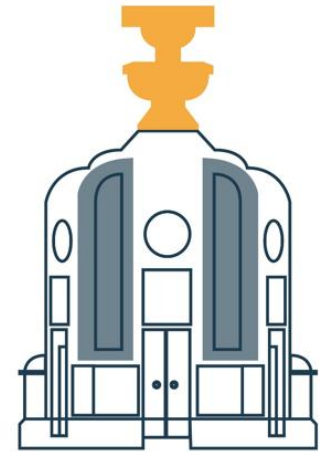
The foundation for this regime is Section 3 of the Constitution, which states that:

- Sovereign power belongs to the Thai people.
- The King, as Head of State, exercises this power through the National Assembly (Parliament), the Council of Ministers (Cabinet), and the Courts

This statement sets the stage for Thailand's separation of powers and institutional design.

The Monarchy (The KING)

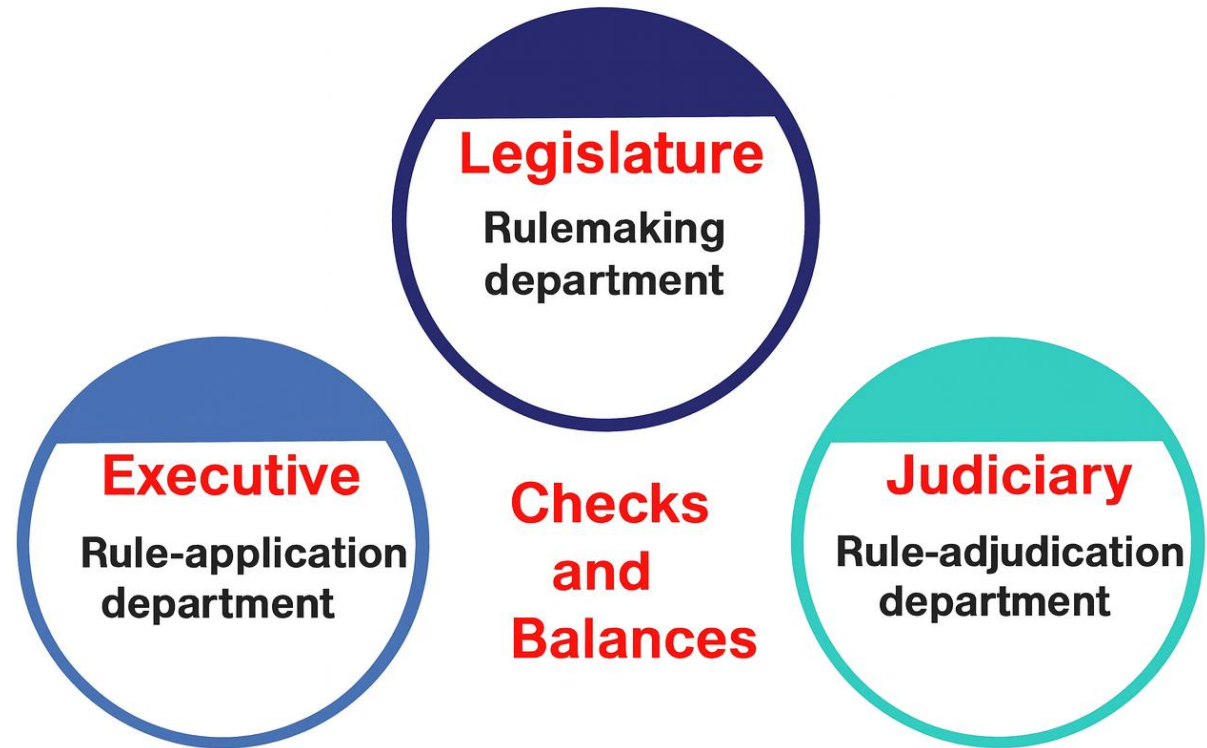
- The King is the **Head of State**.
- His role is largely **symbolic** and **ceremonial**, but he is regarded as a **unifying figure**.
- The monarchy operates **within the framework of the Constitution**, not as an absolute monarchy.



พระราชทาน:
ตามรัฐธรรมนูญ

Thailand
applies the
principle of
separation of
powers among
three main
branches

Separation of Powers- Checks and Balances





Legislative Branch: The National Assembly

Bicameral system:

- **House of Representatives** consists of:

400 members elected from constituencies, and 100 members elected from party lists.

- **The Senate** consists of:

200 members selected through an appointment process

[note: during the first five years of the Constitution, there are 250 members who were appointed by the Military Junta (NCPO) and also hold the authority to participate in the selection of the Prime Minister].

How the House Members Election Works

บัตรเลือกตั้งสมาชิกสภาผู้แทนราษฎรแบบแบ่งเขตเลือกตั้ง

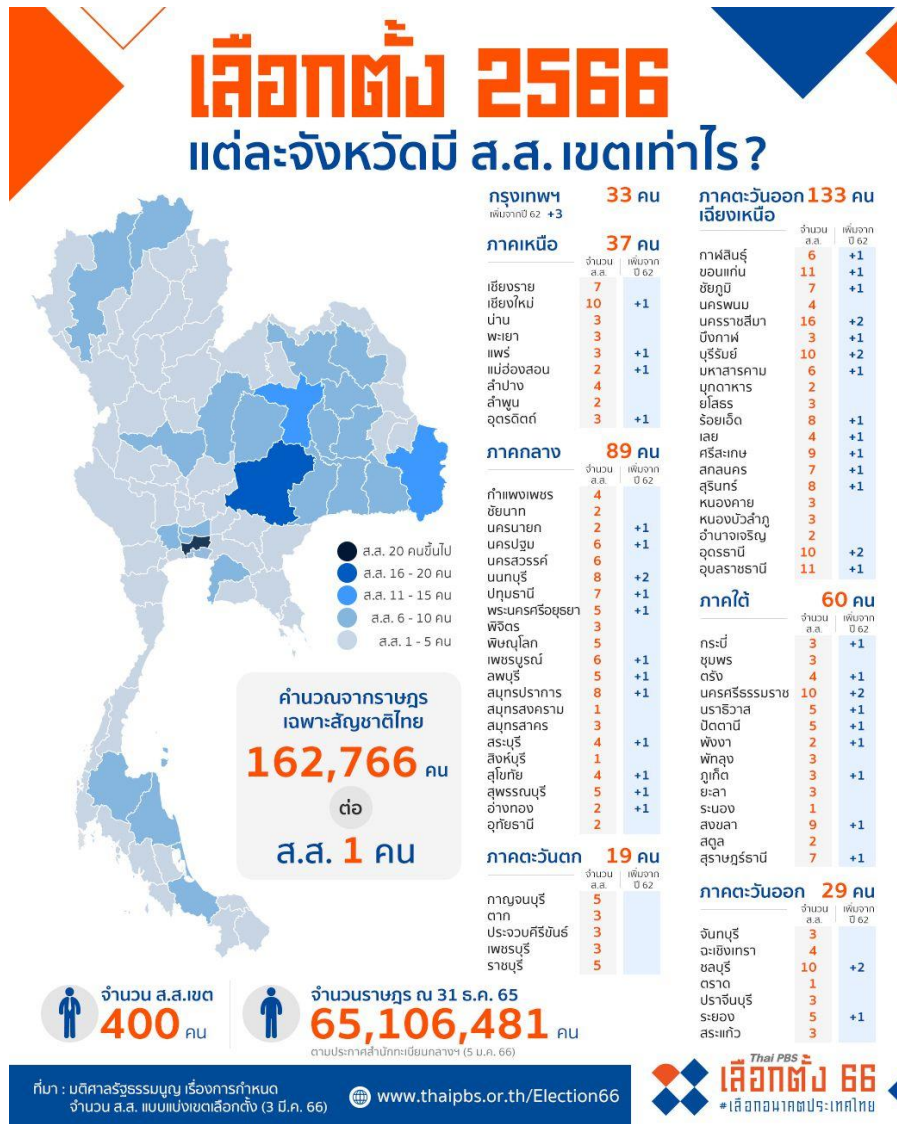
บัตรเลือกตั้งสมาชิกสภาผู้แทนราษฎรแบบบัญชีรายชื่อ

ตัวอย่างบัตรเลือกตั้ง

ตัวอย่างบัตรเลือกตั้ง

Parallel Voting & Separate Ballots

- The system combines two distinct electoral methods for different sets of seats, allowing voters to support different candidates or parties in each category.
- Voters receive two ballots at the polling station, one for constituency representatives and one for party-list representatives.



Constituency Members

400 members are elected from geographical areas called single-member constituencies.

General Principles for Drawing Electoral Constituencies

- **1. Population-to-Member Ratio**

The total population of the country is divided by the **400 constituency Members of the House** to find the **ratio of population per Member**.

- **2. Number of Districts per Province**

The population of each province is divided by the ratio from Step 1 to **calculate how many electoral constituencies that province should have**.

- **3. Adjusting to Reach 400 Constituencies**

If the total number of constituencies is still less than 400, extra constituencies are added to provinces with **the largest remainders (decimals) until the full 400 is reached**.

General Principles for Drawing Electoral Constituencies

- **4. Using Administrative Boundaries as the Basis**

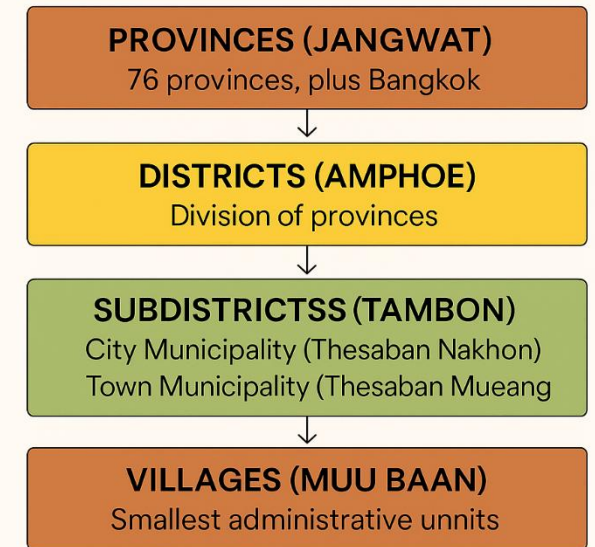
Electoral constituencies are mainly based on **district (amphoe) boundaries**, with two key rules:

- A **subdistrict (tambon)** must remain within one electoral constituencies.
- A **district (amphoe)** may be split into multiple electoral constituencies if needed.

- **5. Maintaining Existing Constituencies**

Efforts are made to **keep existing constituencies unchanged**, unless changes are necessary—for example, due to merging areas or changes in administrative boundaries.

Administrative Divisions of Thailand



3. Party-List Members

The other 100 members are selected from party lists to achieve proportional representation at the national level.

How Party-List Seats Are Calculated (Current System)

- Add up all votes from the nationwide party-list election.
- Divide that total by 100 → this gives the average number of votes needed for 1 seat.
- For each party: (1) Take the party's total votes. (2) Divide by the average number of votes per seat. (3) The whole number result = the party's initial number of seats.
- If fewer than 100 seats are filled: Look at the leftover votes (remainders) from each party. Give the remaining seats one by one to the parties with the largest remainders.
- Stop when all 100 seats are allocated.

How the House Members Election Works

4. Total Members

The system results in a House of Representatives with 500 elected members.

The senate

- The Senate is made up of **200 members** who are selected from among individuals with knowledge, expertise, experience, professional backgrounds, personal characteristics, or shared interests from different sectors of society.
- The grouping of candidates is arranged so that every eligible applicant can belong to at least one group

The Senator Selection Process

- Candidates must meet eligibility criteria, including being at least 40 years old with 10 years of experience in their field.

Key Characteristics:

- **Peer-to-Peer Selection:** Senators are not directly elected by the general public but by other selected individuals.
- **Professional Groups:** Candidates apply within one of 20 specified professional groups, such as education, agriculture, or public health, with 10 members per group will be finally selected.
- **Multi-Level Process:** The selection process involves district (Amphoe), provincial (Changwat), and national levels.

The Process

- **Application:**

Candidates apply within their chosen profession or interest group at their eligible district.

- **District Level (Initial Stage):**

Candidates within the same group vote for each other.

The top 5 candidates from each group advance.

- **District Level (Second Stage):**

Candidates are assigned to randomized groups from other districts.

They vote again, this time for candidates from these different groups.

The top 3 candidates from each group advance.

- **Provincial Level:**

This same process of voting within groups and random groups is repeated at the provincial level.

- **National Level:**

The process continues until a final national list of 200 senators is selected.



One day
arrangement

- 200 senators were selected indirectly from 20 professional and social groups, with 10 members per group, through a multi-round voting process from candidate pools within their respective groups.
- The term of the Senate is **five years** from the date the result of
- the selection is announced
- **The 100 reserve Senators** were chosen from candidates who were not selected as one of the 200 elected Senators, but who met the qualifications and followed the election procedures. The reserve list was formed after the main selection process concluded, ensuring a pool of eligible individuals **to fill any unexpected vacancies**.



Legislative – The National Assembly

- The legislature is the origin of the executive branch, because it (currently, the House) has the power to select the Prime Minister.
- It also serves as the main body that monitors and scrutinizes the work of the executive branch.

Mechanisms for Oversight (monitors and scrutinizes)

- **Policy Acknowledgment:**

The Council of Ministers (Cabinet) must state its policies to the National Assembly, which then has the opportunity to acknowledge and discuss them, providing an early stage of executive accountability.

- **Budgetary Control:**

The review and approval of the national budget provide a powerful tool for the legislature to monitor the executive's spending and ensure its policies are implemented responsibly.

Mechanisms for Oversight (monitors and scrutinizes)

- **Fact-Finding Committees:**

The National Assembly can establish **committees** to conduct investigations, study specific matters, and gather information on government activities, reporting their findings back to the assembly.

- **Questioning and Debate:**

Members of the legislature can **question** ministers and engage in **general debates and confidence debate** to scrutinize the government's policies and actions.

- **Approval of Key Matters:**

The legislature approves significant executive decisions, such as the declaration of war, the appointment of certain officials, and important treaties, giving it a role in shaping and controlling executive power.